the criminals avoid taking the highways where police presence is higher.

PROTECTORS CORNERED

With morale hitting rock bottom, forest department staffers lament their helplessness. "We have stopped wearing uniforms and have surrendered weapons. We are scared to venture into the forests. How do we fight to protect the forests when the government files cases against us even though they are the ones who gave us the guns?" asks a deputy ranger in Vidisha requesting anonymity.

Ajay Pandey, the conservator of forests, Vidisha, toured the affected areas after the incident and wrote back to his superiors flagging the low morale. He has also sought better coordination among the police, revenue and forest officials, besides asking for two battalions of the state special armed force (SAF) in Vidisha. Pandey may be hoping for too much—the existing company of SAF deployed in the neighbouring Raisen district is about to be withdrawn by the police. Due to the reluctance of local forest officials to venture out, the staff from the neighbouring forest divisions are sent for patrolling in Lateri. Pandey says they have been speaking to the neighbouring villagers. "They have assured us help to end illegal felling as forests are a heritage that belongs to them too," he adds.

LEGAL ISSUES OVER FIREARMS

Can the forest department staff use firearms? A letter from the state's home department in 2011 to all police units states that they can use government-provided weapons in self-defence under Section 197(2) of the Code of Criminal Procedure (CrPC). Further, it states that no case will be registered against the forest department staff when they fire a weapon unless a magisterial probe finds them guilty of unwarranted firing. In the Lateri incident, the police filed a murder case even before an enquiry was announced—in violation of the government orders. Earlier too, forest personnel have been booked for firing their weapons.

The forest officials compare the Lateri incident to the one that took place in the neighbouring Guna district in May when the police shot dead three poachers following an earlier encounter that had claimed the lives of three policemen. While one of the poachers died at the time of the firefight, two others were killed days later in another incident, with the police claiming that they fired in self-defence. This led to a fake encounter petition in the court. However, the state stood by the police officials. "Our staff also fired in self-defence when pelted with rocks, but they are not being protected," says a Lateri South Range official. In his application to the police, RO Vinod Singh before absconding had mentioned that his patrolling party was pelted with stones, given death threats and was fired on too.

"What happened in Lateri is unfortunate. A forest department staffer dying in the line of duty gets Rs 10 lakh as compensation. Getting that amount too requires a massive effort. I am not saying anything against the government that employs me but if the government had given us protection under the CrPC, the deputy ranger should not have been arrested. We only demand that the government stand by its own order issued for protecting us," says Shishupal Ahirwar, president of the MP Rangers Association. He adds that so long as the government fails to protect them, the staff will not carry weapons. Is illegal felling on such a massive scale possible without the forest department's complicity? "If the department was involved, nothing would have been left," Ahirwar replies.

An associated issue is the lack of weapons training for the forest staff. Of the 19 pump-action shotguns at the Lateri range, only one is functional. The state-of-the-art tactical shotguns are bundled together in the store room, some of them broken and others rusted beyond recognition. The staff has never received the promised firearms practice. The forest department application to the police argues that the injuries sustained by the timber smugglers suggest that a forest staffer fired in the air, misjudging the lethal extent of the spread of the pellets. "We were told that we would be getting firing practice, but it has not taken place. We wanted to get the guns repaired but don't know of a gunsmith who can do so," says a forest official.

Ramesh Gupta , the principal Chief conservator of forests, MP, says the issue needs to be resolved. "I have written to the DGP and the government to clarify why a case has been registered when the government had, through circulars, said that protection to forest staff would be accorded under Section 197 of the CrPC," he adds.

Back in Raipura village, where the family of the alleged timber smuggler lives, there is grief. Chain Singh has left behind four minor children. "We had gone to the forest to fetch wood for the boundary of our cornfields when we were surrounded by forest department staff and fired on. I was riding pillion with Chain who died on the spot," says Mahendra, one of Chain's brothers who sustained pellet injuries. He has returned home from Bhopal after treatment. The family has around four acres of land, but they have not received a *patta* under the Forest Rights Act. "I don't know what really happened that night, but four kids have lost a father and a woman her husband," says Naran, brother-in-law of the deceased. For the moment, though, the impasse will have a bearing on how MP's forests should be guarded. ■

The MP government has priced teakwood at Rs 45,000 per cubic metre while smugglers sell it at as little as Rs 5,000